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Case Number: 26PSCV00134 Hearing Date: September 17, 2026 Dept: 6

CASE NAME: Jose Sanchez, et al. v. County of Los Angeles, et al.

Defendant Jacqueline Nazerau's Motion for Judgement [sic] on the Pleadings

TENTATIVE RULING

The Court GRANTS Defendant Jacqueline Nazerau's motion for judgment on the pleadings without leave to amend. The Court directs Nazerau to submit a proposed judgment of dismissal with prejudice as to Nazerau for the Court's review and signature within five calendar days of the Court's order.

Defendant Jacqueline Nazerau is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On January 13, 2026, plaintiffs Jose Sanchez, Darlin Lizbeth Sanchez, and Emma Romero Herrera (collectively, Plaintiffs) filed this action against defendants County of Los Angeles (County), City of Los Angeles (City), Jacqueline Nazerau (Nazerau) (collectively, Defendants), and Does 1-100, alleging causes of action for negligence – vicarious liability, and negligence – motor vehicle. On March 27, 2026, County and Nazerau answered the complaint. On June 9, 2026, Plaintiff dismissed City without prejudice.

On August 14, 2026, Nazerau moved for judgment on the pleadings. Plaintiff did not oppose the motion.

LEGAL STANDARD

A defendant may move for judgment on the pleadings when the “complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Code Civ. Proc., § 438, subds. (b)(1), (c)(1)(B)(ii).)

A motion for judgment on the pleadings tests the legal sufficiency of the complaint and is analyzed in all material respects as though it were a demurrer. (Wise v. Pacific Gas & Electric Co. (2005) 132 Cal.App.4th 725, 738; Kapsimallis v. Allstate Insurance Co. (2002) 104 Cal.App.4th 667, 672.)

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 [citations omitted].)

DISCUSSION

Meet and Confer

Per Code of Civil Procedure section 439, subdivision (a), Nazerau was required to meet and confer in person, by telephone, or by video conference before bringing this motion for judgment on the pleadings. (Code Civ. Proc., § 439, subd. (a).) Nazerau failed to meet and confer by any of these methods. (Tong Decl., ¶¶ 3-15.) Nevertheless, the Court may not deny a motion for judgment on the pleadings for failure to adequately meet and confer. (Code Civ. Proc., § 439, subd. (a)(4).) The Court admonishes Nazerau to comply with the Code of Civil Procedure going forward.

Second Cause of Action – Negligence-Motor Vehicle

To state a cause of action for negligence, the plaintiff must allege facts demonstrating, “(1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages or injuries. [Citations.]” (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) “A public employee is not liable for civil damages on account of personal injury to or death of any person or damage to property resulting from the operation, in the line of duty, of an authorized emergency vehicle while responding to an emergency call or when in the immediate pursuit of an actual or suspected violator of the law, or when responding to but not upon returning from a fire alarm or other emergency call.” (Veh. Code, § 17004.)

Defendant Nazerau moves for judgment on the pleadings and dismissal with prejudice on the ground that Vehicle Code section 17004 immunizes her from personal civil liability for injuries resulting from operation of an authorized emergency vehicle while responding to an emergency call. Nazerau argues that Plaintiffs’ own complaint establishes the immunity, because it alleges she was responding to an emergency call and operating an emergency vehicle at the time of the accident. (Compl., ¶¶ 13, 18.) Relying on Cruz v. Briseno (2000) 22 Cal.4th 568, she contends that allegations of negligent operation do not defeat the statutory immunity, which is not conditioned on the officer’s compliance with emergency-equipment or pursuit procedures. Nazerau further argues, citing Brummett v. Cnty. of Sacramento (1978) 21 Cal.3d 880, that her individual immunity is separate from and independent of any potential liability of the County of Los Angeles, so she must be dismissed even if claims against the County proceed.

Plaintiffs did not oppose the motion.

The Court finds the complaint alleges facts showing that Nazerau is immune from liability under Vehicle Code section 17004. The complaint expressly alleges that Nazerau was responding to an emergency call while operating an emergency vehicle in the course and scope of her employment at the time of the accident. (Compl., ¶¶ 12, 13, 18, 20-21.) This triggers section 17004’s immunity for Nazerau. (Veh. Code, § 17004; see Cruz v. Briseno (2000) 22 Cal.4th 568, 572 [officer’s negligent conduct during pursuit did not cause loss of immunity under Vehicle Code section 17004].)

The Court further construes Plaintiffs’ lack of opposition as a concession that Nazerau’s arguments are meritorious and that no facts can be alleged to remedy the defects identified herein. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, “it is assumed that [nonmoving party] concedes” that ground]; Moore v. Centrelake Med. Grp., Inc. (2022) 83 Cal.App.5th 515, 537 [plaintiff bears burden of showing how the complaint can be amended to state a cause of action].)

Based on the foregoing, the Court GRANTS Nazerau’s motion for judgment on the pleadings without leave to amend. The Court directs Nazerau to submit a proposed judgment of dismissal with prejudice as to Nazerau for the Court’s review and

signature within five calendar days of the Court's order.

CONCLUSION

The Court GRANTS Defendant Jacqueline Nazerau's motion for judgment on the pleadings without leave to amend. The Court directs Nazerau to submit a proposed judgment of dismissal with prejudice as to Nazerau for the Court's review and signature within five calendar days of the Court's order.

Defendant Jacqueline Nazerau is ordered to give notice of the Court's ruling within five calendar days of this order.